

Illinois Kei Vehicle Registration: A Narrow Statutory Fix to Clarify 625 ILCS 5/3-401(c-1)

Two-page briefing for Illinois legislators and staff (as of 2026-02-19).

Issue in one sentence: Illinois is treating Kei vehicles that are lawfully imported under federal rules as off-highway/non-highway based on an interpretation of 625 ILCS 5/3-401(c-1)—blocking normal titling and registration for road use.

Core ambiguity: SOS reads “manufactured for operation on highways” as “manufactured for U.S. highways.”

What the Secretary of State is relying on (current posture)

The Secretary of State has pointed to 625 ILCS 5/3-401(c-1), which says a vehicle may not be registered unless it: **1)** was originally manufactured for operation on highways; **2)** is a modification of a vehicle originally manufactured for operation on highways; or **3)** was assembled from component parts designed for highway vehicles.

We are not disputing SOS’s authority to enforce the Vehicle Code; we are asking the General Assembly to clarify how highway-built imported vehicles fit within it.

Key takeaway: Under the SOS’s own framing, the barrier is not a paperwork glitch—it’s a statutory clarity gap. In practice, states that allow ongoing registration generally do so through explicit statutory authorization and/or documented agency policy.

Why a narrowly tailored statute is the most direct fix

Illinois can keep existing safety and equipment enforcement intact while clarifying that a foreign-manufactured vehicle originally designed for highway use (in another country) can be titled/registered here when it is lawfully imported under federal rules (often via the 25-year NHTSA exemption; emissions requirements still apply).

Proposed legislative concept (drafting direction)

Add a targeted clarification to 625 ILCS 5/3-401(c-1) (or a related definitional section) so that a vehicle may be registered if it was originally manufactured for operation on highways in any jurisdiction and is legally importable into the United States under federal law (commonly 25+ years). Eligibility would still require normal Illinois titling documentation, insurance, and compliance with Illinois equipment and traffic laws.

Policy posture: We are asking for normal registration for highway-built Kei vehicles. If operating limits are desired, they should be narrowly tailored and evidence-based—not achieved by categorizing all highway-built Kei vehicles as off-highway.

What we are asking your office to do

- 1) Help identify the best legislative vehicle and sponsor path (Transportation / Vehicle Code).
- 2) Facilitate a staff-level meeting with SOS legal/policy to confirm what statutory language would satisfy their interpretation.
- 3) If supportive, commit to carry or co-sponsor a narrowly drafted fix in the next filing window.

Attachments

- State-by-state authorization approaches (next page)
- A short one-page summary for quick internal sharing
- Examples of SOS denial/revocation letters

Illinois statutory reference: 625 ILCS 5/3-401(c-1) (text available via ILGA).

Point of contact: Tyler Morales, 773 318 8539, tyler@tylermorales.pro

Selected State Status: Authorization / Reversal Examples

This page highlights recent, high-signal examples where states explicitly authorized or restored kei registration through statute or formal policy. (Not an exhaustive list.)

State	Mechanism	Status	Notes	Primary source
Texas	Statute: SB 1816 (defines “miniature vehicle”; treats as motor vehicle for titling/registration)	Came into effect Sep 1, 2025	Creates operational rules for miniature vehicles on public highways.	SB 1816
Colorado	Statute: HB25-1281 (recognizes kei vehicles as road-legal; creates framework)	Signed May 9, 2025 Effective Jul 1, 2027	55mph speed limit	HB 25-1281
Massachusetts	Administrative policy update & Bill H.4053	Registrations resumed Sep 17, 2024	RMV allows Kei vehicle registration for road use Bill H.4053 is in committee	Mass.gov RMV
Michigan	Administrative policy update	Registrations resumed Nov 2024	Allows title and registration for Kei vehicles	Michigan SOS
Oregon	Bill: SB 1213 (would allow title/registration; adds operating-rule provisions)	Transportation committee hearing	Proposed to allow kei registration; includes operating-rule language.	Oregon OLIS;
Maine	Bill H.4053	Bill in committee	Proposed title and registration for Kei vehicles & created a working group	H.4053

Illinois Kei Vehicle Registration — One-Page Internal Summary

For Illinois legislators & staff • Quick reference (as of 2026-02-18) • Nonpartisan issue brief

Issue in one sentence

Illinois is treating lawfully importable kei vehicles (often via the federal 25-year import pathway) as off-highway/non-highway based on the Secretary of State's interpretation of 625 ILCS 5/3-401(c-1), so owners cannot title/register them for normal road use.

What the Secretary of State is relying on (current posture)

The SOS points to 625 ILCS 5/3-401(c-1), which bars registration unless the vehicle was originally manufactured for operation on highways (or is a modification/assembly of highway-intended components). SOS interprets this to exclude kei vehicles because they were not manufactured for operation on U.S. highways, and cites AAMVA "best practice" guidance in the absence of a state statute explicitly authorizing/regulating kei use.

Key takeaway

This is not a paperwork glitch — it's a statutory clarity problem. Under SOS's own framing, the fix is legislative: clarify how highway-built, foreign-manufactured vehicles fit within Illinois registration law when they are federally lawful to import.

Why a narrow statutory fix is the most direct solution

Illinois can keep existing safety/equipment enforcement intact while clarifying that a foreign-manufactured vehicle originally designed for highway use in another jurisdiction may be titled/registered here when it is legally importable under federal law. This resolves the "originally manufactured for operation on highways" ambiguity without creating a broad exemption or weakening enforcement of Illinois traffic, equipment, insurance, and titling requirements.

Legislative concept (drafting direction)

Add a targeted clarification to 625 ILCS 5/3-401(c-1) (or a closely related definitional section) so a vehicle may be registered if it was originally manufactured for operation on highways in any jurisdiction and is legally importable into the United States under federal law (commonly 25+ years). Then apply normal Illinois road-use conditions (title documentation, insurance, equipment compliance, etc.).

What we are asking your office to do

1. Identify the best legislative vehicle and sponsor path (Transportation / Vehicle Code).
2. Facilitate a staff-level meeting with SOS legal/policy to confirm what statutory language would satisfy their interpretation.
3. If supportive, commit to carry or co-sponsor a narrowly drafted fix in the next filing window.

Note: This summary is designed for quick internal circulation; it is not legal advice. Federal import pathways commonly include a 25-year NHTSA exemption for certain requirements; EPA emissions obligations may still apply depending on vehicle and circumstances.



SOS
EX 1-21

OFFICE OF THE SECRETARY OF STATE

Alexi Giannoulas • Secretary of State

MEMORANDUM

TO: Vehicle Services Department
FROM: Office of the General Counsel
DATE: August 5, 2024
RE: Japanese Mini Trucks (Kei Trucks)

I. ISSUE:

Off-highway (or non-highway) vehicles are anticipated and regulated under the provisions of the Illinois Vehicle Code. These vehicles are not specifically designed to be used on public roads, and are therefore prohibited from registration by the Secretary of State. These vehicles are not considered "street legal", but may be authorized for use on public roads (35mph or less) that are under the jurisdiction of a unit of local government or the Illinois Department of Transportation (IDOT). Off-highway vehicles under the Illinois Vehicle Code include all-terrain vehicles, golf carts, off-highway motorcycles, and recreational off-highway vehicles. While Japanese Kei Trucks (or "mini trucks") are not specifically referenced under the Illinois Vehicle Code, the Secretary of State has historically treated these vehicles as off-highway vehicles. The purpose of this memo is to provide an analysis of and recommendations regarding mini trucks and regulation thereof for use in Illinois.

II. ANALYSIS:

Federal Law-Mini Trucks:

- Under the Imported Vehicle Safety Compliance Act of 1988, mini trucks are generally prohibited from importation to the United States because these vehicles do not comply with federally mandated vehicle safety and emissions standards.
- However, once these vehicles reach an age of 25 years or older, this importation prohibition is deemed to no longer apply, and such vehicles may be and have been imported into the United States.
- While importation of mini trucks that are 25 years or older is authorized, that does not mean that these vehicles are authorized to be driven on the public roadways of the various states.
- It is then left up to the states to determine whether these mini trucks are deemed "street legal".

Illinois Secretary of State
115 S. LaSalle St., 13th Floor
Chicago, Illinois 60603

SOS EX 1

State Laws-Mini Trucks:

- The regulation of mini trucks varies from state to state, with some states banning use on public roads altogether and other states allowing for use on public roads with specified limitations.
- State law examples specified below:
 - **Illinois:** Illinois law does not explicitly address regulation of mini trucks. However, historically, SOS has regarded mini trucks as off-highway vehicles. In which case, we do not currently register mini trucks, and they are not authorized on public roads, except if they are authorized by a unit of local government or IDOT on roads (35mph or less) under their respective control.
 - **North Carolina:** By statute, mini trucks are authorized on roads with speed limits of 55mph or less. Mini trucks are regulated similarly to low-speed vehicles under NC law.
 - **Florida:** By statute, mini trucks are authorized on roads with speed limits of 35mph or less. Mini trucks are regulated similarly to low-speed vehicles under Florida law.
 - **Indiana:** Any vehicle meeting the definition of “mini truck” under Indiana law is authorized for use on public roads without a speed limit restriction, excluding Interstate Highways.
 - **Texas:** Does not allow for use of mini trucks on its public roads.
- Interstate Highways Prohibited: No state currently allows for use of mini trucks on Interstate Highways.

III. PROCEDURE AND RECOMMENDATION:

Recommendation:

- Because Illinois lacks laws that explicitly regulate the operation of mini trucks on Illinois roads, it is recommended that the Illinois Vehicle Code be amended to specifically address this issue.
- The following 2 options are recommended:
 - **Option 1:** Allow operation of mini trucks on public roads with restrictions.
 - North Carolina and Florida both regulate mini trucks under the same or similar requirements as low-speed vehicles in those states.
 - Likewise, Illinois law also currently provides for regulation of low-speed vehicles. That regulation includes titling, registration, safety equipment requirements, mandatory insurance requirements, driver’s license requirements, dealer licensing requirements, and road speed limit restrictions, allowing for operation only on roads of 30mph or less.
 - If operation is authorized, mini trucks should be regulated the same as low-speed vehicles under Illinois law.
 - **Option 2:** Explicitly prohibit operation of mini trucks on public roads.
 - SOS currently treats mini trucks as “non-highway vehicles”, but is not explicitly authorized to do so.
 - If we choose to prohibit use on public roads, Illinois law should be amended to define “mini truck” and to include it among the other specified non-highway vehicles for regulation purposes.

Illinois Secretary of State
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Chicago, Illinois 60603

SOS Ex 2



OFFICE OF THE SECRETARY OF STATE

December 29, 2025

RE: 1996 Honda
Vehicle Identification No. 2282243

Under the Imported Vehicle Safety Compliance Act of 1988, mini trucks are prohibited from importation to the United States because these vehicles do not comply with the federally mandated vehicle safety and emission standards. However, once these vehicles reach an age of 25 years or older, this importation prohibition is deemed to no longer apply. While importation of mini trucks that are 25 years or older are authorized, that does not mean that these vehicles are authorized to be driven on public roadways in Illinois.

Please find the new Illinois Certificate of Title that has been branded as "Not Eligible for Registration".

As such, it is necessary that you promptly return Illinois license plates 4256647B that were issued in error, to your nearest Secretary of State facility or by mail to the following address - Vehicle Services Department, Vehicle Titles Division, 501 S. Second St., Room 609 Howlett Bldg., Springfield, Illinois 62756.

If you wish to contest this decision, you have the right to a formal hearing before the Secretary of State Department of Administrative Hearings. A request for a formal hearing must be made in writing and addressed to: Office of the Secretary of State Department of Administrative Hearings 501 S Second St Room 200 Springfield, IL 62756 A filing fee of \$50.00 must accompany any request for a formal hearing. The fee may be submitted in the form of a check, money order, or by credit card, by completing the appropriate form. CASH WILL NOT BE ACCEPTED. If a request for a hearing is received without the fee attached, the request will be returned and no hearing will be scheduled. The fee is NON-REFUNDABLE once a hearing is scheduled. This is in accordance with Section 2-118 of the Code and 92 Illinois Administrative Code, Chapter II, Section 1001.70.

If you have any questions or need further assistance, please contact the Vehicle Titles Division at 217/557-0717 or by email to titlesdivision@ilsos.gov.

Illinois Secretary of State
Vehicle Services Department

TD57:SLJ/W001
Enclosure/s:

 **Karlie Sanchez**
karlie@repnormahernandez.com 
To: tyler@tylormorales.pro  2/2/26, 12:12 PM
Re: Clarification Request: Kei Truck Title & Registration Policy in Illinois

Hi Tyler,

Following up on this email. I spoke with our liaison at the Secretary of State's, and this is what she relayed over.

"There are some instances in which individuals purchase a vehicle and then they are upset when they learn that they cannot be registered/plated and driven on the roadway. KEI trucks are one example, rehabbed military Humvees are another.

Whether or not KEI trucks are authorized for roadways is decided on a state by state basis. The states that allow for registration and use of Japanese Kei Trucks or Kei Vehicles on public highways specifically authorize and regulate their use by statute.

Because these vehicles do not comply with federally mandated safety and emissions standards for operation on public roads and there is no such statute in Illinois that specifically authorizes and regulates the use of these vehicles despite their incompatibility with federal standards, the Secretary of State considers these vehicles to be off-highway or non-highway vehicles. Pursuant to Illinois Vehicle Code Section 3-401 (625 ILCS 5/3-401(c-1); a provision established by Public Act 94-239 (Eff. 1/1/2006)), a vehicle may not be registered by the Secretary of State unless that vehicle: (1) was originally manufactured for operation on highways; (2) is a modification of a vehicle that was originally manufactured for operation on highways; or (3) was assembled from component parts designed for use in vehicles to be operated on highways. Any KEI truck or KEI vehicle in operation in Illinois is a vehicle that was not originally manufactured for operation on US highways and is therefore not eligible for registration. If and when the Secretary of State becomes aware of such vehicles, those vehicles are treated as off-highway/non-highway vehicles that are not eligible for registration. This practice of prohibiting registration of these vehicles is in keeping with the recommended best practice of the American Association of Motor Vehicles Administrators (AAMVA), and many states and jurisdictions follow this practice in the absence of laws regulating their use."

Best,

Karlie Sanchez, MPP | District Director
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